

**United States Small Business Administration
Office of Hearings and Appeals**

NAICS APPEAL OF:

Spees Design Build

Appellant

Solicitation No. 36C24926R0051
U.S. Department of Veterans Affairs

Issued: March 24, 2026

Docket No. NAICS-2026-03-23-134

NOTICE AND ORDER

The Office of Hearings and Appeals (OHA) hereby notifies all currently known parties, all prospective offerors, and other persons that an appeal of the North American Industry Classification System (NAICS) code designated in the above-captioned solicitation was filed on March 20, 2026. OHA conducts NAICS code appeals under the authority of 13 C.F.R. Parts 121 and 134, and Federal Acquisition Regulation (FAR) 19.103.

I. Instructions to the Contracting Officer

The Contracting Officer responsible for this solicitation MUST:

A. Amend the solicitation within two business days to notify potentially interested parties of the pendency of this appeal. Attach a copy of this Notice and Order to the amendment. *See Advanced Sys. Tech., Inc. v. United States*, 69 Fed. Cl. 474 (2006). Send a copy of the amendment to OHA with the “CO’s Memorandum.”

B. Stay the date for the closing of receipt of offers until OHA issues a decision, as required by 13 C.F.R. § 121.1103(c)(1)(i).

C. Send OHA a link to where the original solicitation and all amendments are posted on the Internet, as required by 13 C.F.R. § 134.306(b) and FAR 19.103(a)(6). If the solicitation is not posted online, send a paper copy to OHA.

D. Complete and return the “CO’s Memorandum” as soon as possible.

E. Notify OHA of any additional amendments to the solicitation, any contract award, or any other litigation affecting this procurement, while this appeal is pending.

The Contracting Officer may also file and serve a substantive response to the appeal by the close of record.

II. Responses to the Appeal and Close of Record

Any response to this appeal must be filed with OHA and served upon all parties or their attorneys (if represented) and be **RECEIVED by OHA no later than April 8, 2026**. Except for good cause shown, the record will close on that date.

The rules of practice are at 13 C.F.R. §§ 134.101-318. OHA's website has the rules, a sample certificate of service, caselaw, and other material: <http://www.sba.gov/oha>.

III. Filing and Service Instructions

A party filing any pleading or other submission must include a Certificate of Service stating how and when the party accomplished service. 13 C.F.R. §§ 134.305(c), 134.204(d). The attached Certificate of Service lists all currently known parties (or their attorneys) and their email addresses.

Filing is the **RECEIPT** by OHA of the pleading or other submission. A filing received by OHA after 5 p.m. eastern time is considered filed on the next day. 13 C.F.R. § 134.204(b)(2). Service means providing a copy of the submission to other parties (or their attorneys). 13 C.F.R. § 134.204(c). OHA recommends filing and service by email. File any submissions to:

Office of Hearings and Appeals
U.S. Small Business Administration
409 Third Street, S.W., 8th Floor
Washington, DC 20416
Attn: Bilikis Bioku, Esq.
Email: OHAFilings@sba.gov; William.Murphy@sba.gov

Parties should also check their record addresses on the attached Certificate of Service. Unless otherwise instructed, that address is where all further papers (including the decision) in this appeal will be served.

OHA decisions are normally published without redactions on OHA's website within a few days of issuance. A party may request the public decision be redacted by contacting OHA promptly once an appeal is filed. For information on protective orders and OHA's treatment of confidential information, *see* 13 C.F.R. § 134.205.



Brian J. Haring
U.S. Administrative Law Judge